DISTRICT COURT OF Wyandotte COUNTY, KANSAS

THE STATE OF KANSAS

Case No. 1999-CR-000001.99

vs.

Alexandria Catherine Montgomery-Washington [Name]

Defendant

PETITION FOR RELIEF FROM OFFENDER REGISTRATION

Pursuant to K.S.A. 22-4908

I respectfully request of the Court an order removing me from the offender registry and relieving me from further offender registration requirements. In support of my request, I state the following:

1. My full name is Alexandria Catherine Montgomery-Washington;
2. My full name at the time of my conviction for the drug offense or offenses requiring registration, if different than #1, was _____;
3. I am a _____ [Race] _____ [Sex] born in _____[Year of Birth];
4. I was convicted of Possession of a controlled substance with an unusually long descriptive charge [drug offense or offenses requiring registration] on 1999-02-14 [Date] in 29th court. If convicted in another state, I am not required or I am no longer required to register under the laws of that state.
5. ☐ My most recent date of parole, discharge or release was 2001-12-31

   OR

   ☐ I was not confined in jail or prison for the offense.

6. I am currently registered as a drug offender in the following counties:

_____.

7. I have substantially complied with all registration requirements for a period of at least five years after the date of parole, discharge or release, whichever date is most recent, or, if not confined, five years from the date of conviction.

8. ☐ I have not been arrested, convicted, or entered into a diversion agreement for any crime during the period I have been required to register.

OR

☐ I have been arrested, convicted, or entered into a diversion agreement for the following crimes during the period I was required to register:

9. The following are the names of all treatment providers and agencies that have treated me for mental health, substance abuse, and offense-related behavior since the date of the offense or offenses requiring registration:

10. My circumstances, behavior and treatment history demonstrate that I have been sufficiently rehabilitated to warrant relief, and that my registration is no longer necessary to promote the public safety, because:

I affirm under penalty of perjury that the statements in this Petition are accurate to the best of my knowledge, and I respectfully request that the Court set this matter for hearing and grant the relief requested.

Defendant, Pro Se
Name (Print): Alexandria Catherine Montgomery-Washington
Address 1: 1188 Southwest Martin Luther King Junior Boulevard, Apartment 1407
Address 2:
City, State, Zip: Kansas City, KS 66101-4417
Telephone Number: 913-555-0199
Fax Number:
E-mail Address: alexandria.montgomery.washington@example.org

Authority

K.S.A. 22-4908, as amended 2022 S.B. 366.

Notes on Use

As amended in 2022, K.S.A. 22-4908 allows drug offenders to file a petition seeking relief from the registration requirements of the Kansas Offender Registration Act, K.S.A. 22-4901, *et seq*. Sex offenders and violent offenders are not currently authorized to seek relief from registration.

Drug offenders may petition for relief after having registered for a period of at least five years after the date of parole, discharge or release, whichever date is most recent, or, if not confined, five years from the date of conviction. Any period of time when an offender is in jail or prison or is not in substantial compliance with registration requirements does not count toward the five-year period.

The district court may require a drug offender who is petitioning for relief from registration to undergo a risk assessment at the offender's expense.

If the drug offense for which the offender is registering would otherwise be eligible for expungement, the offender may combine a petition for registration relief with a petition for expungement. (Please review the expungement forms on the Judicial Council website to determine expungement requirements for drug offenses.)

To obtain relief, the offender must show by clear and convincing evidence that:

1) The offender has not been convicted of a felony (other than a felony registration violation) within the five years immediately preceding the filing of the petition, and no proceedings involving a felony are presently pending or being instituted against the offender;
2) The offender's circumstances, behavior and treatment history demonstrate that the offender is sufficiently rehabilitated to warrant relief; and
3) Registration of the offender is no longer necessary to promote public safety.

If the court orders relief, the offender will be removed from the offender registry and will no longer be required to register. If the court denies relief, the offender must wait three years before filing another petition for relief.

For Office Use Only

ORDER OF RELIEF FROM OFFENDER REGISTRATION
COVER SHEET
(for submission to the Kansas Bureau of Investigation)

This coversheet is to be sent to the Kansas Bureau of Investigation to assist them with determining the correct person to be removed from the registry.

This form must be typed or printed legibly.

DEFENDANT'S INFORMATION

NAME: Alexandria Catherine Montgomery-Washington

ADDRESS: 1188 Southwest Martin Luther King Junior Boulevard, Apartment 1407
Kansas City, KS 66101-4417

SOCIAL SECURITY NUMBER: _____

❒ MALE ❒ FEMALE

DOB: _____

RACE: **❒ WHITE ❒ BLACK ❒ASIAN ❒ PACIFIC ISLAND**
❒ AMERICAN INDIAN/ALASKAN ❒ UNKNOWN

ETHNICITY: ❒HISPANIC ❒ NON-HISPANIC ❒ UNKNOWN

ALIAS NAMES USED:

_____

_____

_____

_____

_____

IN THE 29th JUDICIAL DISTRICT
DISTRICT COURT OF Wyandotte COUNTY, KANSAS

THE STATE OF KANSAS

Case No. 1999-CR-000001.99

vs.

Alexandria Catherine Montgomery-Washington [Name]
Defendant

PETITION FOR EXPUNGEMENT OF CONVICTION OR DIVERSION

Pursuant to K.S.A. 21-6614.

I respectfully request of the Court an order of expungement of my ☒ conviction and related arrest records **OR** ☐ diversion record and related arrest records. In support thereof, I state the following:

1. My full name is Alexandria Catherine Montgomery-Washington.
2. My full name at the time of my arrest or conviction, if different than #1, was _____.
3. I am a _____ [Race] _____ [Sex] born in _____[Year of Birth].
4. I was arrested in Wyandotte County, Kansas on 1998-01-31 [Date] by Kansas City Police Department [Law Enforcement Agency] and charged with the crime of Possession of a controlled substance with an unusually long descriptive charge.
5. I was convicted of Possession of a controlled substance with an unusually long descriptive charge on 1999-02-14 [Date].

OR

I was granted a diversion for the crime of _____ on _____ [Date].

6. The convicting court or diverting authority was 29th.

7. The date of final discharge was 2001-12-31.

8. *(Select and complete either Option A or B, NOT both)*

☒ **Option A.**

i. More than ☐ one ☐ three ☐ five ☐ ten years have elapsed since I fulfilled the terms of a diversion agreement, satisfied the sentence imposed, or was discharged from probation, a community services program, parole, post-release supervision, conditional release or a suspended sentence; and

ii. I have not been convicted of a felony in the past two years and no proceeding involving any such crime is presently pending or being instituted against me.

iii. *(check box if applicable)*

☐ I was convicted/ received a diversion for prostitution and I was acting under coercion.

Coercion means: threats of harm or physical restraint against any person; a scheme, plan or pattern intended to cause a person to believe that failure to perform an act would result in bodily harm or physical restraint against any person; or the abuse or threatened abuse of the legal process.

OR

☐ **Option B.**

I successfully completed a specialty court program. My conviction is for an offense that would normally be eligible for expungement after three years. No proceeding involving a felony is presently pending or being instituted against me.

9. The conviction or diversion for which expungement is sought is not one of the offenses set out in K.S.A. 21-6614(e), for which no expungement is permitted.

I affirm under penalty of perjury that the statements in this Petition are accurate to the best of my knowledge and I respectfully request that the Court set this matter for hearing and grant the expungement.

Defendant, Pro Se
Name (Print): Alexandria Catherine Montgomery-Washington
Address 1: 1188 Southwest Martin Luther King Junior Boulevard, Apartment 1407
Address 2:
City, State, Zip: Kansas City, KS 66101-4417
Telephone Number: 913-555-0199
Fax Number:
E-mail Address: alexandria.montgomery.washington@example.org

Authority

K.S.A. 21-6614.

Notes on Use

A person may not receive an expungement for convictions of:

- Rape
- Indecent liberties with a child
- Aggravated indecent liberties with a child
- Criminal sodomy
- Aggravated criminal sodomy
- Indecent solicitation of a child
- Aggravated indecent solicitation of a child
- Sexual exploitation of a child
- Internet trading in child pornography
- Aggravated internet trading in child pornography
- Aggravated incest
- Endangering a child
- Aggravated endangering a child
- Abuse of a child
- Capital murder
- Murder in the first degree
- Murder in the second degree
- Voluntary manslaughter
- Involuntary manslaughter
- Involuntary manslaughter while driving under the influence
- Sexual battery when the victim is less than 18 years of age
- Aggravated sexual battery
- Commercial driving under the influence, including any diversion for such violation
- Any comparable offense if the conviction was in effect at any time prior to July 1, 2011.

K.S.A. 21-6614(e).

A person who is required to register as a sex offender or violent offender under the Kansas Offender Registration Act may not receive an expungement for any conviction while the person is required to register. However, a person who is required to register as a drug offender under the Kansas Offender Registration Act may be eligible to petition for relief from registration and for expungement of the drug offense at the same time if all applicable requirements are met. See the chart on the next page for the applicable time requirements for expungement of drug offenses. Forms to request relief from drug offender registration are also available on the Judicial Council website.

Please consult the chart on the next page if your crime is not listed above.

Conviction	Date when crime was committed	Time since sentence completed Or	Time since diversion completed Or	Time since discharged from probation, community correctional services, parole, postrelease supervision, conditional release or suspended sentence	Expungement Available	K.S.A. with more details
applying for title of a motor vehicle under a false name or address	Not relevant	5 years	5 years	5 years	Yes	21-6614(c)
crime punishable as a felony wherein a motor vehicle was used	Not relevant	5 years	5 years	5 years	Yes	21-6614(c)
cigarette or tobacco infraction +	Not relevant	3 years	3 years	3 years	Yes	21-6614(a)
driving under the influence – regardless of number of offenses (*see* K.S.A. 8-1567)	Prior to July 1, 2006	5 years	5 years	5 years	Yes	21-4619 (repealed and transferred to 21-6614 – L. 2010, Ch. 136)
driving under the influence – 1st offense (*see* K.S.A. 8-1567)	On or after July 1, 2006	5 years	5 years	5 years	Yes	21-6614(d)
driving under the influence – 2nd or subsequent offense (*see* K.S.A. 8-1567)	*On or after July 1, 2006 except those committed on or after July 1, 2014, and prior to July 1, 2015	10 years	N/A	10 years	Yes	21-6614(d)
driving under the influence – 2nd or subsequent offense (*see* K.S.A. 8-1567)	*On or after July 1, 2014, and prior to July 1, 2015	7 years	N/A	7 years	Yes	21-6614(d) L. 2014, Ch. 102 § 6. L. 2015 Ch. 71, § 4.
driving while canceled, suspended or revoked	Not relevant	5 years	5 years	5 years	Yes	21-6614(c)
failing to have motor vehicle insurance	Not relevant	5 years	5 years	5 years	Yes	21-6614(c)
failing to stop at the scene of an accident and perform required duties	Not relevant	5 years	5 years	5 years	Yes	21-6614(c)
misdemeanor+	Not relevant	3 years	3 years	3 years	Yes	21-6614(a)
nondrug crime ranked in severity levels 1 through 5	On or after July 1, 1993	5 years	5 years	5 years	Yes	21-6614(c)
nondrug crime ranked in severity levels 6 through 10+	On or after July 1, 1993	3 years	3 years	3 years	Yes	21-6614(a)
perjury	Not relevant	5 years	5 years	5 years	Yes	21-6614(c)

Conviction	Date when crime was committed	Time since sentence completed Or	Time since diversion completed Or	Time since discharged from probation, community correctional services, parole, postrelease supervision, conditional release or suspended sentence	Expungement Available	K.S.A. with more details
prostitution	Not relevant	1 year	1 year	1 year	Yes	21-6614(b)
traffic infraction[+]	Not relevant	3 years	3 years	3 years	Yes	21-6614(a)
vehicular homicide	Not relevant	5 years	5 years	5 years	Yes	21-6614(c)
class A, B, or C felony	Not relevant	5 years	5 years	5 years	Yes	21-6614(c)
class D or E felony[+]	Not relevant	3 years	3 years	3 years	Yes	21-6614(a)
felony ranked in severity levels 1 through 3 of drug grid	Between July 1, 1993 and July 1, 2012	5 years	5 years	5 years	Yes	21-6614(c)
felony ranked in severity levels 1 through 4 of drug grid	On or after July 1, 2012	5 years	5 years	5 years	Yes	21-6614(c)
felony ranked in severity level 4 of drug grid[+]	Between July 1, 1993 and July 1, 2012	3 years	3 years	3 years	Yes	21-6614(a)
felony ranked in severity level 5 of drug grid[+]	On or after July 1, 2012	3 years	3 years	3 years	Yes	21-6614(a)
off-grid felony	On or after July 1, 1993	5 years	5 years	5 years	Yes	21-6614(c)

* Based on *State v. Anderson*, 12 Kan. App. 2d 342, 744 P.2d 143 (1987), the law in effect at the time of the offense applies with regard to eligibility for expungement unless the current law is more beneficial to the defendant. The current statute, K.S.A. 21-6614(d)(2), says a second or subsequent DUI conviction under K.S.A. 8-1567 cannot be expunged until 10 or more years have elapsed, but from July 1, 2014, to June 30, 2015, the statute allowed any DUI conviction or diversion to be expunged after 7 years. L. 2014 Ch. 102, § 6, effective July 1, 2014; L. 2015 Ch. 71, § 4, effective July 1, 2015. For a first DUI conviction or diversion, the current law, allowing expungement after 5 years, applies because it is more beneficial to a defendant than the 7 years required from July 1, 2014, to June 30, 2015. For a second or subsequent DUI conviction, the current statute, K.S.A. 21-6614(d)(2), does not allow expungement until 10 or more years have elapsed. Therefore, for second or subsequent DUIs that were committed on July 1, 2014, through June 30, 2015, the statute in effect at the time of the crime that allowed expungement after 7 years applies because it is more beneficial to the defendant.

[+]*Completion of a Specialty Court Program*

A person who has completed the requirements of a specialty court program may petition for immediate expungement of any offense which is otherwise eligible for expungement after 3 years. This early expungement opportunity does not apply to offenses for which expungement is not available or to offenses which require a 1, 5, 7 or 10-year waiting period.

PREPARING A KANSAS REGISTRATION-RELIEF AND COMBINED-EXPUNGEMENT FILING

Prepared for: Alexandria Catherine Montgomery-Washington

The registration-relief petition is verified. Read every printed fact against your records before you sign.

We recommend attorney review before filing, because relief requires clear and convincing evidence, the county or district attorney is notified, victims may be notified and may participate, and the court may order a risk assessment.

This page explains the court-controlled parts of the process and the facts the participant must supply. It does not write the rehabilitation or public-safety account.

THE FOUR FINDINGS THE COURT MUST MAKE

The registration-relief court applies the statutory five-year and substantial-compliance requirements, including the treatment of periods that do not count.

The participant must address the recent-felony and pending-felony condition described by K.S.A. 22-4908.

The participant must present the own circumstances, behavior and treatment history showing sufficient rehabilitation; the court decides it.

The court decides whether registration is no longer necessary to promote public safety, and may require a risk assessment at the participant's expense.

WHAT THE COMMITTED RECORD SAYS, IN ITS OWN WORDS

Venue and filing:
The verified petition is filed in the district court of the county where the participant was convicted or adjudicated of the offense requiring registration.

Treatment providers:
The petition requires the names of all treatment providers and agencies that treated the participant for mental health, substance abuse and offense-related behavior since the offense.

Notice:
The court causes notice to the county or district attorney, who handles victim notification under the statute. The participant does not perform that service.

Victim protection:
The victim or the victim's family cannot be compelled to testify or to provide discovery to the offender.

Fee waiver:
None identified in K.S.A. 22-4908. The K.S.A. 60-2001 poverty affidavit practice applies to the civil docket fee by its own terms; its reach over the combined expungement fee is unresolved.

Risk assessment:
The court may require a risk assessment by a professional agreed upon by the parties or approved by the court, at the participant's expense.

Denial:
A denial bars another petition for three years unless the court orders a shorter period.

Combined filing:
The offense may be combined with a K.S.A. 21-6614 expungement petition when it is otherwise eligible; the two forms and filing mechanics remain separate questions for the clerk or counsel.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- The participant is a sex offender or violent offender registrant.
- Five years of substantial compliance is disputed, or incarceration or noncompliance periods are in question.
- A recent felony or pending felony proceeding is present.
- The county or district attorney opposes the petition, a victim participates, or the court sets a contested hearing.
- The court orders a risk assessment.
- The participant asks LegalEase to write or assess the rehabilitation or public-safety showing.
- The combined offense is not otherwise eligible for expungement.
- The participant has immigration consequences or another issue requiring legal advice.

WHAT THIS DOCUMENT IS NOT

This page is process guidance. It does not decide eligibility, make a clear-and-convincing showing, draft item 10, or predict a court decision.